

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

CORY LEA SHEPHERD (Appellant) v WORKERS' COMPENSATION REGULATOR (Respondent) | Matter No.
WC/2024/227

OUTLINE OF EVIDENCE - CORY LEA SHEPHERD

Served pursuant to direction 2 of the Further Directions Order (3) dated 19 August 2026

1. Employment. I have been employed by Metro South Hospital and Health Service since 2019, as an Administration Officer (AO3), Switchboard Services, Logan Hospital. I moved from casual to part-time hours and then, on the approval of my line manager dated 27 September 2023, to permanent full-time hours commencing 16 October 2023.

2. The work. The position is a continuous shift working role covering the full 24-hour period, seven days a week. My duties included participation in the hospital's Emergency Response process and the distribution of emergency code notifications, maintaining call queues, and maintaining the Omnivista database and SharePoint. I handled approximately 200 to 300 calls per shift.

3. Rostering, 17 to 19 March 2024. I was rostered to finish at 23:00 on 17 March 2024 and to commence again at 06:00 on 18 March 2024, an interval of seven hours. Emergency (MET) calls were recorded on those shifts. I took leave on 19 March 2024. I will give evidence of the effect of that sequence on my sleep and on my functioning.

4. Fatigue management. No fatigue risk assessment applied to my position at any time before 30 June 2024, and I received no fatigue risk management training for it.

5. Rostering, leave and pay administration. I will give evidence of: an email of 7 August 2023 in which my line manager confirmed a rostering error as an oversight; a leave application for 20 to 27 February 2024 declined for a missing attachment, which a later review found had in fact been attached; and a payroll instruction issued on 3 May 2024 to correct my shifts, with the correction submitted on 28 May 2024.

6. Raising the matters. I will give evidence of raising rostering, fatigue, leave and pay matters with my line manager and with the Director between August 2023 and May 2024, including my email of 7 August 2023, my email of 1 May 2024 concerning rostering and the fatigue toolkit, and the responses I received.

7. May 2024. *[CLOSE THIS PARAGRAPH - see the note on page 2.]*

8. Onset and presentation. I will give evidence of the onset of my symptoms, of my inability to attend rostered shifts on 13, 14 and 15 May 2024, and of first presenting to my general practitioner on 1 July 2024 in relation to work-related stress.

9. Since. I will give evidence of my treatment since 2024, of the hours I have in fact worked, and of my present capacity.

Cory Lea Shepherd
Appellant (self-represented)
[date]

Sources and drafting notes - NOT part of the served document

Each proposition above, with the source to verify it against before service.

Para	Verify against
1	Full-time approval email, C Taylor, 27 September 2023
2	AO3 Switchboard Services role description (served on the Respondent 17 August 2026)
3	Notice to admit facts item 1 and the Respondent's response; Respondent's statement of facts and contentions at paragraph 22(a); Chief Executive's letter of 5 June 2026, items 1 and 2; leave takings report, 19 March 2024
4	Chief Executive's letter of 5 June 2026, items 4, 5 and 7
5	Taylor email 7 August 2023; notice to admit facts paragraph 14 and the response; notice to admit facts paragraphs 40 and 41
6	Email chains of 7 August 2023 and 1 May 2024, in the Respondent's disclosure
8	Respondent's statement of facts and contentions, paragraph 16(b)(i); work capacity certificate of Dr P Hawes, 1 July 2024

PARAGRAPH 7 - THE ONE DECISION

Stressor 1(e) is pleaded, and the Respondent has **admitted it in full**: the complaint of 13 May 2024 and the Ethical Standards Unit's determination that it constituted a public interest disclosure. Two options:

(a) One factual line - "I will give evidence that on 13 May 2024 I made a complaint concerning conduct in my workplace, and that on 24 December 2024 the Ethical Standards Unit determined that it constituted a Public Interest Disclosure."

(b) Omit the paragraph entirely, on the footing that the fact is admitted and needs no evidence.

Recommendation: (a), bare fact only. It is pleaded, and the Guide warns that failing to call evidence on a pleaded matter may count against you. Under neither option does any word of motive, reprisal or consequence appear.

DRAFTING DISCIPLINE

- **No adjectives.** Not "erratic", not "unreasonable", not "unfair". Dates and events only.
- **Nothing about your perception of management action.** That is the door the Respondent has not pleaded and must not be opened.
- **Nothing about the employment dispute** - the 2026 exclusion, the request for medical information, the union, or pay since July 2026. None of it is in this appeal.
- **Admitted facts need no evidence.** What is above is there to frame your own account, not to prove twice what the Respondent has already conceded.
- **Brevity is compliance.** Guide 4.10: "You do not need to fill the entire A4 page, it is just a brief overview of the material they will cover." Serving three weeks before the Respondent, the outline should convey the shape and leave the detail to oral evidence.